

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: June 2, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER SETTING STATUS CONFERENCE

On June 17, 2025, Complainant filed a Verified Complaint in this matter.

On May 29, 2026, Respondent filed Respondent's Motion for Clarification, Protective Relief, and Guidance Regarding Scope of Discovery ("MFR"). In the MFR, Respondent essentially asks that I clarify my April 1, 2026, Order Granting in Part and Denying in Part Respondent's Motion to Dismiss, Granting in Part and Denying in Part Complainant's Motion to Compel, and Requiring Respondent to Provide a Declaration (the "April 1 Order"), where I ordered Respondent to answer Complainant's Request for Document Production ("RFP") Nos. 4 and 7.¹

Complainant filed Complainant's Response in Opposition to Respondent's Motion for Clarification, Protective Relief, and Guidance Regarding Scope of Discovery ("MTR Opp.") on May 31, 2026.

It appears from the parties' positions that there has been a fundamental misunderstanding as to what Complainant is seeking.

Respondent apparently thinks that Complainant is seeking production of all communications regarding 54 shipments. (MFR, at 1-2). Indeed, it appears that is what Complainant was asking for in Complainant's Combined Motion to Exceed Page Limits and to Compel Reasonable Discovery ("March 9 Motion"). (See March 9 Motion, at 16 (asking for an order requiring Respondent to produce documents "without limiting production to only two shipments where Respondent's asserted justification relies on account-level balances and related records[.]").

¹ Respondent states in its MFR that it seeks clarification regarding RFP Nos. 2 and 3. (See generally MFR, at 1, 3). I assume that is a typographical error, as the rest of the document indicates that Respondent is referring to RFP Nos. 4 and 7.

In contrast, Complainant appears to argue that it does not want documents related to all 54 shipments. (MFR Opp., at 3-4). Instead, it appears that Complainant is seeking additional documents from third parties related to the two containers at issue. (*Id.*; *see also* Complainant's Motion to Enforce April 1, 2026 Order as to Requests for Production Nos. 4 and 7 and for Sanctions ("MTE"), at 3 (identifying several third parties, and stating that "[t]hose entities do not appear to have been identified in Respondent's supplemental interrogatory response, and Respondent's declaration does not identify searches for communications with them.")).

There also appears to be a fundamental misunderstanding of the type of communication and cooperation I am looking for between the parties. I have noted repeated communication failures in this case. (Order Regarding Complainant's Motions for May 9, 2026, and Addressing Deferred Ruling Regarding Complainant's Motion for Reasonable Discovery (the "May 21 Order"), at 8). It appears that those failures persist.

I wrote in my May 21 Order that: "I appreciate Complainant's point that the Villena Declaration indicates that searches were conducted regarding only two third-party email addresses, whereas there were several third-parties involved." (May 21 Order, at 7). I also wrote that it was unclear if Complainant asked that of Respondent directly. (*Id.*).

I was anticipating Complainant specifically asking Respondent to provide a list of names or search terms that Respondent should search for specifically. (*See* May 21 Order, at 8 ("Accordingly, the parties are to engage in a constructive, good faith dialogue regarding appropriate searches to be performed.")). That is a common practice in litigation. For example, Complainant identified a number of third parties in the MTE. (*See* MTE, at 3). It would have been good if Complainant gave Respondent a specific list of entity names for which Respondent should search. Complainant did not.

To date, it appears that on May 21, 2026, Complainant asked generally for communications between "TSS and any carrier, terminal, warehouse, trucker, vendor, payment recipient, NVOCC, freight forwarder, customs broker, yard, storage provider, or other non-FormuKleen person or entity concerning CHSU4047424 or BSIU8431017 where no FormuKleen representative was included as a sender, recipient, copied party, blind-copied party, or forwarded participant." (*See* MFR, at Ex. A, email of May 21, 2026). Complainant did not specify what Complainant thought was missing.

On May 22, 2026, Respondent offered: "to conduct an additional targeted search for third-party communications concerning the two subject containers - including communications with carriers, terminals, warehouses, truckers, vendors, and other non-FormuKleen entities where FormuKleen was not a party to the communication." (*See* MFR, Ex. A, email of May 22, 2026, at 4:44 pm).

Complainant responded later on May 22, 2026: "Respondent's obligation is not satisfied by saying it is willing to conduct another search, by proposing a meeting, by invoking the holiday weekend, by referencing staffing issues, or by stating what it 'believes' it has already produced." (*See* MFR, Ex. A, email of May 22, 2026, at 6:22 pm). Again, it would have been good if Complainant specifically said what should be searched for and produced. Complainant did not.

Respondent emailed Complainant on May 26, 2026, at 11:23 a.m., and stated it would make additional targeted searches. Respondent also asked about “narrow[ing] the scope of what needs to be produced” in relation to other containers. (MFR, Ex. A, email of May 26, 2026, at 11:23 a.m.).

On May 26, 2026, at 12:55 p.m., Complainant emailed, stating: “Respondent must produce the ordered documents, cure the redactions, and identify the responsive RX/Bates ranges by May 28, 2026.” (MFR, Ex. A, email of May 26, 2026, at 12:55 p.m.).

It appears that this issue is able to be resolved with a clear discussion between the parties of what Complainant expects to see, and what Respondent needs to produce. I do not see that in the record.

In order to facilitate the communication and cooperation I expect to see, the parties are **HEREBY ORDERED** to appear for a status conference on **Thursday, June 4, 2026, at 10:00 AM EDT**. The conference will be conducted via Teams; the parties’ representatives will receive a Teams link.

Richard C. Ambrow Jr -S

Richard Ambrow
Administrative Law Judge